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LOK SABHA

COMMITTEE

STUDY GUIDE

AGENDA

‘One Nation, One Election’

Analyzing the constitutional, logistical, and democratic implications of synchronized central and state polls

SHRI G. S. INSTITUTE OF TECHNOLOGY AND SCIENCE, INDORE

Sansad • Samvidhan • Samvad

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Letter from the Executive Board

Dear Delegates,

It is our privilege to welcome you to the Lok Sabha at SGSITS MUN 2026.

You have been handed an agenda that Parliament itself has not resolved. The Constitution (One Hundred and Twenty-Ninth Amendment) Bill, 2024 and the Union Territories Laws (Amendment) Bill, 2024 were introduced in the Lok Sabha and referred to a Joint Committee of Parliament. Every serious objection raised in that process - on federalism, on Article 356, on the fate of a House dissolved mid-term, on whether States must ratify the change - remains live. You are not re-enacting a settled debate. You are entering an open one.

A word on what this guide is. It is a floor, not a ceiling. We have deliberately withheld the operative recommendations of the High Level Committee on Simultaneous Elections, because a delegate who arrives having read only our summary of someone else's conclusions is a delegate who will spend three days quoting a report instead of arguing with it. We have given you the history, the constitutional provisions at stake, the administrative numbers, and the questions. The positions are yours to build.

A word on what we expect. Research beyond this document. Read the Bill text itself; it runs to four pages and will take you twenty minutes. Read the dissenting notes to the Joint Committee, not only the majority view. Know your own party's stated position and know where it has shifted. We will reward a delegate who concedes a point honestly and recovers far more than one who repeats a talking point loudly.

A word on conduct. The Lok Sabha is a House of elected representatives, and you will be addressed as such. Substantive arguments carry the committee; theatrics do not. Factual accuracy is non-negotiable - a figure you cannot source is a figure you should not cite. We will intervene when debate drifts from the agenda, and we will not intervene to rescue a delegate who has not prepared.

Finally: this agenda sits at the intersection of constitutional law, electoral administration and political philosophy. You do not need to master all three. You need to know which one your argument rests on, and what it costs you.

We look forward to a committee worth the name.

Regards,

Speaker - Siddhesh Bandi

Deputy Speaker - Atiksh Sharma

Rapporteur - Vihaan Bhandari

Introduction to the Committee & Agenda

ABOUT THE AGENDA

'One Nation, One Election' (ONOE) is a comprehensive electoral reform framework designed to synchronise the election cycles of the Lok Sabha (the lower house of Parliament) and all State Legislative Assemblies, so that citizens cast their ballots for both tiers of governance concurrently.

The modern architecture for this proposal was formalised by the High-Level Committee (HLC) on Simultaneous Elections, constituted by the Union Government in September 2023 under the chairmanship of former President Ram Nath Kovind. The panel also included Union Home Minister Amit Shah, former Finance Commission Chairman N.K. Singh, and senior advocate Harish Salve.

In its report submitted in March 2024, the Kovind Committee outlined a phased execution plan:

- Phase 1 synchronises national parliamentary polls with State legislative assemblies through new constitutional mechanisms (such as the proposed Article 82A).
- Phase 2 aligns local self-government bodies (Panchayats and Municipalities) within 100 days under Article 324A.

Proponents advocate ONOE to end India's perpetual, year-round campaign cycle. They argue that synchronising polls will:

- Curtail election expenditure by both the exchequer and political parties.
- Relieve Central Armed Police Forces (CAPF) and teachers from recurring administrative fatigue.
- Eliminate continuous "policy paralysis" caused by the repeated enforcement of the Model Code of Conduct (MCC).

POWERS RELEVANT TO THIS AGENDA

Function	Provision	Why it matters here
Amending the Constitution	Article 368	The entire ONOE project requires amendment; nothing less will do
Legislating on elections to Parliament	Article 327	Parliament may make provision on all matters relating to elections to either House
Confidence in the Council of Ministers	Article 75(3)	A government that loses it falls - the central problem a fixed cycle must solve
Approving a Proclamation under Article 356	Article 356(3)	President's Rule needs parliamentary approval within two months
Control of the purse	Articles 112-114	The Election Commission's expenditure on Lok Sabha polls is borne by the Union

Historical Background

THE SIMULTANEOUS CYCLE (1951-1967)

Simultaneous elections were the default constitutional reality and practical norm during the formative decades of the Republic. Supervised by the first Chief Election Commissioner, Sukumar Sen, and his successors, the Election Commission of India conducted concurrent polls across the country in the first four general elections: 1951-52, 1957, 1962 and 1967. Voters cast separate ballots at the same polling station to elect their Member of Parliament (MP) and Member of Legislative Assembly (MLA) in a single visit.

The synchronisation held without artificial term truncations or special constitutional mandates, primarily because of the political hegemony of the Indian National Congress under Prime Ministers Jawaharlal Nehru and Lal Bahadur Shastri. Single-party dominance at the Union and in nearly all States produced cohesive legislative majorities, which virtually eliminated hung assemblies, coalition fallouts and premature dissolutions.

HOW THE CYCLE BROKE (1967-1980)

- **1967 elections:** Broke Congress dominance and gave rise to fragile multi-party regional coalitions termed Samyukta Vidhayak Dal (SVD).
- **Defections:** Unchecked floor-crossing and horse-trading coined the "Aaya Ram, Gaya Ram" culture, decades before the Anti-Defection Law (Tenth Schedule) was enacted in 1985.
- **1968-69:** Collapsing coalitions triggered premature dissolution of Assemblies in Bihar, Uttar Pradesh, West Bengal and Punjab.
- **December 1970:** Prime Minister Indira Gandhi, heading a minority government after a bitter split in the Congress, dissolved the Fourth Lok Sabha more than a year early to seek a fresh mandate in 1971. The decoupling was cemented at the Union level.
- **1970s-80s, Article 356:** Frequent, partisan use of President's Rule locked in the desynchronisation - most notably the dismissal of nine Congress-ruled State governments by the Janata Party in 1977, followed by the retaliatory dismissal of nine non-Congress State governments by Indira Gandhi in 1980. State election calendars were permanently scattered across the five-year cycle.

THE KOVIND COMMITTEE (2023-2024)

In September 2023 the Government constituted a High-Level Committee chaired by former President Ram Nath Kovind. It submitted its report in March 2024, with these primary recommendations:

- **Phased implementation:** Phase 1 synchronises the Lok Sabha and State Legislative Assemblies; Phase 2 synchronises Municipalities and Panchayats within 100 days.
- **Constitutional amendments:** Suggested amendments, including Articles 82A and 324A, to enable simultaneous polls.
- **Single electoral roll:** Empowering the Election Commission of India (ECI), in consultation with State Election Commissions (SECs), to prepare a unified electoral roll.

THE CONSTITUTION (129TH AMENDMENT) BILL, 2024

On 17 December 2024, the Minister of Law and Justice introduced the Constitution (129th Amendment) Bill, 2024 in the Lok Sabha, alongside the Union Territories Laws (Amendment) Bill, 2024. The Bill seeks to empower the ECI to conduct simultaneous elections and provides that if a State Assembly election is deferred, its term may be curtailed so that future elections align with the simultaneous cycle.

CURRENT STATUS (AS OF OCTOBER 2026)

- The Bills were referred to a 39-member Joint Parliamentary Committee (JPC) chaired by P.P. Chaudhary. Its term has seen multiple extensions.
- In October 2026, controversy erupted when the JPC proposed an informal discussion with the Chief Justice of India and other Supreme Court judges on ONOE. The Supreme Court declined, citing the separation of powers.

OFFICIAL RECOMMENDATIONS BEFORE 2023

Five official bodies examined simultaneous elections between 1983 and 2018. Their support was not uniform; delegates should read the qualifications as carefully as the endorsements.

Body	Document and year	What it said
Election Commission of India	First Annual Report, 1983	Recommended evolving a system under which Lok Sabha and Assembly elections could be held together, citing savings on administrative expenditure and reduced disruption from prolonged deployment of civil and police personnel. No action followed.
Law Commission of India (Chair: Justice B.P. Jeevan Reddy)	170th Report, Reform of the Electoral Laws, May 1999	Held that the country should return to holding Lok Sabha and all Assembly elections at once, with a separate Assembly election as the exception. Paired this with a proposed Rule 198A in the Lok Sabha Rules of Procedure - a constructive vote of no confidence, requiring that a no-confidence motion be moved together with a motion of confidence in a named alternative.
Parliamentary Standing Committee on Personnel, Public Grievances, Law and Justice	79th Report, Feasibility of Holding Simultaneous Elections to the House of the People and State Legislative Assemblies, December 2015	Recommended holding simultaneous elections in two phases rather than a single nationwide poll. Recorded the ECI estimate that government expenditure on Lok Sabha and Assembly elections was around Rs 4,500 crore.
NITI Aayog	Analysis of Simultaneous Elections: the "What", "Why" and "How", January 2017	A working paper, not a government decision. Worked out an implementation framework and argued that the country was in a near-permanent state of election.
Law Commission of India	Draft Report on Simultaneous Elections, 2018	Published for public comment rather than adopted. Proposed categorising States by proximity to the next general election and holding two rounds of Assembly polls - one with the Lok Sabha election and one roughly 30 months later. Also recorded that the MCC does not cause administrative paralysis, but produces a governance deficit through avoidance of decisions that might influence voters.

Timeline of Key Milestones

Date	Milestone
1951 to 1967	Simultaneous cycle holds - general elections of 1951-52, 1957, 1962 and 1967
1968 to 1971	Cycle breaks: premature dissolution of State Assemblies, then of the Fourth Lok Sabha
Jan 1983	Election Commission of India, First Annual Report
May 1999	Law Commission of India, 170th Report
Dec 2015	Parliamentary Standing Committee, 79th Report
Jan 2017	NITI Aayog working paper
Aug 2018	Law Commission draft report on simultaneous elections
Sep 2023	High Level Committee constituted under Shri Ram Nath Kovind
Mar 2024	High Level Committee report submitted
Sep 2024	Union Cabinet approval
Dec 2024	Constitution (129th Amendment) Bill introduced in the Lok Sabha
Dec 2024	Bills referred to the Joint Committee of Parliament
Dec 2026	Joint Committee report due (Winter Session 2026)

The gaps matter as much as the marks. Sixteen years of a working cycle, three years of collapse, then a sixteen-year silence before the Election Commission raised the question in 1983 - and another sixteen before the Law Commission took it up. The proposal has moved faster in the last three years than in the previous forty.

The Model Code of Conduct

The MCC is the second pillar of the case for the Bill, and the evidence is more contested than the Statement of Objects and Reasons suggests.

WHAT THE MCC DOES

The MCC comes into force when elections are announced and restricts the party in power:

- No advertising funded by the public exchequer.
- No announcement of financial grants or promises of them.
- No foundation stones for new projects.
- No ad hoc appointments in government or public sector undertakings that could influence the vote.

THE ELECTION COMMISSION'S POSITION

The Commission's own stated position is narrower than the critique it answers. It has said that the MCC:

- Does not hinder the implementation of existing schemes.
- Is not a ground for leaving commissioned schemes idle.
- Does not bar payment for completed work.
- Does not refuse approval for emergency or natural calamity measures.
- Applies only to the State or constituencies going to the polls, not to the rest of the country.

THE LAW COMMISSION'S MIDDLE POSITION

The 2018 draft report held that the MCC does not cause administrative paralysis, but produces a governance deficit, because decision-makers avoid choices that might influence voters.

WHAT DELEGATES MUST ESTABLISH

Delegates arguing from MCC disruption need to establish three things rather than assert one:

- That the disruption is real rather than anticipatory.
- That it is national rather than State-specific.
- That synchronisation reduces it rather than concentrating it into a single 43-day window.

Federal Implications

The federal objection to simultaneous elections is not that it harms States. It is that it changes the relationship between the Union and the States without their consent, by making the term of every State Legislature a function of the term of the Lok Sabha.

THE CONSTITUTIONAL STARTING POINT

- India is described in Article 1 as a "Union of States". The Seventh Schedule distributes legislative power, and Article 172 gives each State Legislative Assembly a term of five years - an independent term, running from its own first sitting and unconnected to Parliament's.
- **Kesavananda Bharati v. State of Kerala (1973)**: Parliament's amending power under Article 368 does not extend to altering the basic structure of the Constitution.
- **S.R. Bommai v. Union of India (1994)**: A nine-judge Bench held that federalism is part of the basic structure, and that a State government is not a mere agent of the Centre. Bommai arose from Article 356 (see Constitutional Implications) but its federalism holding frames everything here.

The question for this committee is not whether the Union may legislate on elections - plainly it may, under Article 327. It is whether tying thirty-one Assembly terms to one House's term crosses from regulating elections into restructuring the federal relationship.

THE ASYMMETRY AT THE HEART OF THE BILL

Under the Constitution (129th Amendment) Bill, 2024, once the President notifies the appointed date, the terms of all State and Union Territory Assemblies constituted after that date will expire with the expiry of the full term of the Lok Sabha. If an Assembly is dissolved early, the fresh election is only for the remainder of that five-year period.

- The dependency runs one way. A State Assembly's life is measured against the Lok Sabha's. The Lok Sabha's life is measured against nothing.
- If the Lok Sabha is dissolved in year four, every Assembly in the country is pulled into a mid-term election it did not cause and may not want.
- If a State Assembly falls, the Lok Sabha is unaffected.

Delegates arguing for the Bill should be ready to explain why this asymmetry is not a subordination of State legislatures to the Union. Delegates arguing against it should be ready to explain what a symmetrical alternative would look like, and whether it is workable.

CURTAILMENT AT THE TRANSITION

The first cycle requires somebody's term to be cut. PRS Legislative Research illustrates the mechanics: if the appointed date falls in 2029 and the first simultaneous poll is in 2034, a State that elected its Assembly in 2028 completes its five years in 2033 and then goes to the polls for a term of less than a year.

- This is not a one-time cost. Every subsequent mid-term collapse - Union or State - produces another truncated legislature.
- The Bill does not set a floor below which a term cannot be cut.
- The federal point is about who bears the cost. Curtailment falls on States as a class, repeatedly and by design, while the Union's term is curtailed only when the Union's own government falls.

CONSENT OF THE STATES

States have no vote on this amendment unless the proviso to Article 368(2) applies to it. The Union's position is that Articles 82A, 83, 172 and 327 fall outside the proviso, so ratification by half the State Legislatures is not required. Opponents argue that an amendment that determines the duration of every State Legislature affects the federal scheme in substance even if it does not touch the listed Articles in form.

This is the single most consequential legal question before the committee. Everything about the political arithmetic changes depending on the answer. Delegates should take a clear position on it and be able to defend it textually, not only politically.

HOW ARTICLE 131 SAFEGUARDS FEDERALISM

If the amendment passes without State ratification, what recourse does a State have? The answer is Article 131 - and delegates should understand both its strength and its limits.

- **What it provides:** Original and exclusive jurisdiction of the Supreme Court in any dispute between the Government of India and one or more States, between the Union and some States on one side and other States on the other, or between two or more States - provided the dispute involves a question of law or fact on which the existence or extent of a legal right depends. A proviso excludes disputes arising from pre-Constitution treaties and agreements that continue in force.
- **Why it matters for federalism:** It is a forum designed for governments, not citizens. A State need not find an aggrieved individual, prove a fundamental rights violation, or go through a High Court. It sues the Union directly, as a constitutional equal, in the only court that can hear it. The provision descends from Section 204 of the Government of India Act, 1935, and the Constituent Assembly deliberately retained it rather than adopt a more unitary design.
- **The route it opens for ONOE:** A State that believes the amendment curtails its Assembly's term without authority, or that the ECI's exercise of the proposed deferral power has stripped it of an elected legislature, has a direct action against the Union. The dispute is quintessentially one about the "extent of a legal right" - the State's right to a Legislative Assembly for the term the Constitution gives it.
- **Where the safeguard is weakest:** Article 131 is not settled law on the point that matters most.

Case	Year	What it held
State of West Bengal v. Union of India	1963	The first Article 131 suit, against the Coal Bearing Areas (Acquisition and Development) Act, 1957. The Court heard it and dismissed it, upholding the Act.
State of Karnataka v. Union of India	1977	Set out the "legal right" requirement that governs maintainability.
State of Madhya Pradesh v. Union of India	2011	Held that the constitutional validity of a central law should normally not be challenged under Article 131; the appropriate route is Article 32 or 226.
State of Jharkhand v. State of Bihar	2015	Took the contrary view and referred the conflict to a larger Bench.
State of Kerala v. Union of India	2020	Kerala sued under Article 131 challenging the Citizenship (Amendment) Act, 2019 - the first State to do so against that law.

Case	Year	What it held
State of West Bengal v. Union of India	2024	Held the State's suit over the CBI's jurisdiction maintainable under Article 131, including where parallel proceedings exist under Articles 32, 136 or 226.

Constitutional Implications

Simultaneous elections cannot be introduced by executive order, by a Presidential notification alone, or by ordinary legislation. They require an amendment to the Constitution, and that amendment interacts with provisions the Bill does not touch. The gaps are where the committee's work lies.

WHAT THE BILL ACTUALLY DOES

The Constitution (One Hundred and Twenty-Ninth Amendment) Bill, 2024 runs to six clauses.

Provision	Effect
New Article 82A	The operative provision. The President may issue a notification on the date of the first sitting of the Lok Sabha after a general election - the appointed date. Terms of all State Assemblies constituted after that date expire with the full term of that Lok Sabha. Defines "simultaneous elections". Empowers the Election Commission to recommend to the President that a particular State's election be deferred.
Article 83 (Duration of Houses of Parliament)	Amended to introduce the concepts of full term, unexpired term and mid-term election for the Lok Sabha.
Article 172 (Duration of State Legislatures)	Amended correspondingly for State Legislative Assemblies.
Article 327 (Power of Parliament to make provision with respect to elections to Legislatures)	The words "conduct of simultaneous elections" inserted after "delimitation of constituencies".

The companion Union Territories Laws (Amendment) Bill, 2024 does the same work for the Assemblies of Delhi, Puducherry and Jammu & Kashmir, by amending the Government of National Capital Territory of Delhi Act, 1991, the Government of Union Territories Act, 1963 and the Jammu and Kashmir Reorganisation Act, 2019. These are ordinary Bills requiring only a simple majority.

WHAT IS NOT IN THE BILL

- No provision on local bodies (that would require a separate amendment reaching Articles 243K and 243ZA and would attract State ratification).
- No constructive vote of no confidence.
- No change to Article 356.
- No minimum floor on the length of a curtailed term.

THE CONSTITUTIONAL PROVISIONS IN PLAY

Article	Subject	Relevance
83(2)	Lok Sabha's five-year term	Amended by the Bill; extension possible only during a Proclamation of Emergency
85	Sessions, prorogation and dissolution of the Lok Sabha	The President's power to dissolve survives untouched
172(1)	State Assembly's five-year term	Amended by the Bill
174(2)(b)	Governor's power to dissolve an Assembly	Untouched; a Governor may still dissolve a House mid-cycle
75(3) and 164(2)	Collective responsibility to the House	The source of mid-term instability the Bill must absorb
324	Superintendence, direction and control of elections by the ECI	The Bill enlarges the Commission's role substantially
327 and 328	Parliament's and State Legislatures' power over elections	Amended; State power under 328 is subject to Parliament's
356	President's Rule	Not amended - see below
368	Amendment procedure	The gateway, and the ratification question

THE AMENDMENT THRESHOLD

Article 368(2) requires, in each House, a majority of the total membership and two-thirds of those present and voting. There is no joint sitting available - Article 108 does not apply to Constitution Amendment Bills - so the Bill must clear both Houses independently.

When the Bill was introduced on 17 December 2024, the Government carried the motion with a simple majority only. On a full House, two-thirds of members present and voting in the Lok Sabha is a substantially higher bar than the Government's present numbers, and the Rajya Sabha arithmetic is tighter still. This is a Bill that cannot pass without cross-party support.

THE RATIFICATION QUESTION

The proviso to Article 368(2) requires ratification by the Legislatures of not less than one-half of the States for amendments to specified provisions, including Chapter IV of Part V (the Union Judiciary), Chapter V of Part VI (the High Courts), Chapter I of Part XI (legislative relations between the Union and the States), the Seventh Schedule, the representation of States in Parliament, and Article 368 itself.

- Articles 82A, 83, 172 and 327 are not on that list. On a textual reading, no ratification is required.
- On a purposive reading, an amendment that determines how long every State Legislature exists goes to the distribution of power between the Union and the States in substance, whatever Chapter it sits in.
- The Union's position rests on the text. The critics' position rests on substance and on the basic structure doctrine. Both are respectable arguments and neither has been tested in court, because an amendment that has not been enacted cannot be challenged.

THE BASIC STRUCTURE EXPOSURE

If enacted, the amendment would be open to challenge on the ground that it damages the basic structure. The candidate grounds:

1. **Federalism** - held to be part of the basic structure in *S.R. Bommai* (1994).
2. **Democracy and free and fair elections** - held to be part of the basic structure in *Indira Nehru Gandhi v. Raj Narain* (1975).
3. **Parliamentary form of government and responsible government** - if a government that loses the confidence of the House can be succeeded by a legislature with an eight-month term, the argument runs that accountability has been formally preserved and practically hollowed.

Against this, the Government can point to the fact that India had simultaneous elections for sixteen years under this same Constitution, which makes it difficult to argue that synchronisation is inherently incompatible with it. That is a strong argument, and delegates on the opposing side should meet it directly rather than ignore it.

THE ARTICLE 356 PROBLEM

Article 356 allows the President, on receipt of a report from the Governor or otherwise, to assume to himself the functions of the State Government where he is satisfied that the government of the State cannot be carried on in accordance with the Constitution. In practice the Assembly is suspended or dissolved and the State is administered from the Centre - President's Rule.

Its safeguards, most of them added by the Forty-Fourth Amendment of 1978 and strengthened by *S.R. Bommai*:

- The Proclamation must be laid before each House of Parliament and ceases to operate at the end of two months unless approved by both Houses - Article 356(3).
- Once approved, it runs for six months and may be extended by six months at a time, to a maximum of three years.
- Continuation beyond one year requires both that a Proclamation of Emergency be in operation in the whole or part of the State and that the Election Commission certify that difficulties exist in holding a general election to that Assembly - Article 356(5).
- *Bommai* held the Proclamation justiciable, directed that the majority be tested on the floor of the House, and held that the Assembly may not be dissolved until both Houses of Parliament have approved the Proclamation.

WHY IT IS A PROBLEM FOR SYNCHRONISATION

1. **It is the historical cause of the breakdown.** The 1967-71 collapse was driven by unstable State governments and by the use of Article 356 against them. A Bill that fixes election dates without touching the power to dismiss governments leaves the original failure mode fully intact. A Union government that dislikes a State government can still remove it; the only change is that the replacement Assembly gets a shortened term.
2. **A State under President's Rule on polling day.** If President's Rule is in force and the conditions of Article 356(5) are met so that elections cannot be held, that State sits out the synchronised election. When its election eventually happens, its Assembly is out of cycle - and the only way back in is another truncated term. Each use of Article 356 injects a fresh de-synchronisation that the system must then absorb.
3. **A second, weaker route to postponement.** The Bill creates a route to postponing a State election that is far less constrained than Article 356 (compared below).

Feature	Article 356	Proposed Article 82A(5)
Who initiates	Governor's report or otherwise; President acts	Election Commission recommends; President orders

Feature	Article 356	Proposed Article 82A(5)
Parliamentary approval	Required within two months, by both Houses	Not required
Preconditions	Constitutional machinery has failed; for continuation past a year, an Emergency plus ECI certification	None specified in the Bill
Time limit	Six months at a time, three years maximum	None specified
Judicial review	Established by Bommai	Untested
Who governs meanwhile	President's Rule, with parliamentary oversight	Not specified in the Bill

Article 356 permits postponement only on specified conditions requiring parliamentary approval; the Bill, having no such requirements, lowers the threshold for postponing elections. Because the Bill sets no time limit, a State could be left without an Assembly, with no provision saying who governs it or under what authority.

Electoral Implications

This section deals with what synchronisation does to the election - the machinery, the money, the campaign and the voter - as distinct from what it does to the Constitution.

THE SCALE OF THE EXERCISE

- The 2024 Lok Sabha election covered 97.9 crore electors across 11.80 lakh polling stations, held on seven poll days spread over 43 days.
- Simultaneous elections would add a second ballot, a second set of machines and a second count at every one of those polling stations.
- Between 1977 and 1998 a general election took four or fewer poll days, with a gap of three or four days between first and last. Since 2009 that gap has exceeded 25 days, and in 2024 it was 43.

Elections have grown longer even as technology has improved. A single nationwide poll held on a single day is not what anyone is proposing, and a 43-day national election means a 43-day Model Code of Conduct in every State at once.

VOTER BEHAVIOUR AND THE COATTAIL EFFECT

The central evidence here is the IDFC Institute data set (*Nudging the Voter in One Direction?*, 1999-2014): a 77% rate of same-party winners in simultaneously held segments against 48% when the cycle is broken, and a steady rise in the simultaneous figure from 68% in 1999 to 86% in 2014. Two mechanisms could produce this, with different implications:

1. **Information economy.** A voter holding two ballots has one set of information, one campaign and one salient leadership question in mind. Voting the same way at both levels is cheaper than evaluating two contests independently.
2. **Agenda substitution.** The national campaign, which is louder and better funded, sets the terms. State issues - water, land, policing, local administration, the subjects of the State List - are decided by voters thinking about national questions.

The second mechanism, if correct, means synchronisation makes State elections less informative about State governance. That is a serious charge, and one that ought to trouble delegates who support the Bill on efficiency grounds.

The honest counter: even at the peak figure, 77% means roughly a quarter of assembly segments still returned a different party from the parliamentary seat covering them. And aggregate correlation is not proof of causation: States that have held simultaneous elections are not a random sample, and a party strong enough to win a State Assembly is in any case likely to win the parliamentary seats in that State. Be ready for that argument from the other side.

WHAT THE BILL LEAVES OUT OF THE ELECTORAL SYSTEM

Issue	Status under the Bill
Bye-elections	Not addressed. Section 151A of the Representation of the People Act, 1951 requires a casual vacancy to be filled within six months. Bye-elections would continue throughout the five-year cycle, so the country would still be "in election mode" several times a year.
Local body elections	Not in this Bill. Panchayat and municipal elections are conducted by State Election Commissions under Articles 243K and 243ZA. Bringing them in would require a separate amendment, widely argued to attract the ratification proviso to Article 368(2).
Electoral rolls	Unchanged. Parliament, State and local elections continue to use separately maintained rolls.
Campaign finance	Unchanged.
Anti-defection	Unchanged. The Tenth Schedule's interaction with a truncated-term legislature is unexamined.

Administrative, Logistical & Security Implications

SCALING EVM & VVPAT MANUFACTURING AND WAREHOUSING

The most immediate logistical issue is the availability of sufficient EVMs and VVPATs. In a simultaneous election a voter votes for two legislatures, so each polling station needs separate voting arrangements for each. The Election Commission would need a very large stock of EVM and VVPAT units, plus reserves to replace equipment that develops a fault during polling.

The challenge is not simply purchasing machines. Each machine must go through testing, checking, commissioning, transportation, storage, randomisation and security procedures before and after elections. Machines must also reach remote locations - the mountainous areas of Himachal Pradesh, Uttarakhand, Jammu & Kashmir and the Northeast, and forest and tribal regions of Chhattisgarh, Jharkhand, Odisha and Madhya Pradesh - where equipment and personnel may travel on foot or in specialised vehicles, and where security concerns complicate movement further.

The constraints that follow are physical, not financial:

- **Manufacturing capacity.** EVMs are produced by Bharat Electronics Limited and the Electronics Corporation of India Limited, both public sector undertakings with finite annual output. The Commission's own judgment, communicated to the Law Ministry, was that production capacity, warehousing and logistics made 2029 the earliest feasible date for a first simultaneous election.
- **Warehousing.** EVMs are stored under strict protocol with multi-party access logs, sealed strongrooms and CCTV. Doubling the stock roughly doubles district-level warehousing. The 2015 Standing Committee recorded the Commission's concern that storage costs would rise.
- **Shelf life.** EVMs last about 15 years. Under simultaneous polling, one set covers three election cycles cleanly, which is the basis of the Rs 10,000 crore per 15 years figure. Under the present staggered system, machines move between State and national elections and depreciate on a less predictable schedule.
- **Transport.** Two sets of machines per station across 11.80 lakh stations is roughly double the current movement of sealed equipment under armed escort.

CAPF & ARMED FORCES DEPLOYMENT

- Elections require police and other security personnel to protect polling stations, election materials, strong rooms, transportation routes and counting centres.
- Under simultaneous elections, security forces would have to be deployed across the country at the same time, with additional cover for sensitive and vulnerable locations.
- This raises the question of whether enough personnel would be available without affecting law and order and their other responsibilities.
- ONOE would therefore need a large-scale security deployment plan, prepared well in advance and coordinated between the Union and State governments.

ADMINISTRATIVE AND POLLING STAFF BANDWIDTH

- Polling officers, presiding officers, returning officers, counting personnel, observers, technical staff and other government employees all take part in the process.
- Managing two elections at once requires careful allocation and training of personnel, who must handle the EVMs and VVPATs of each election and keep separate records.
- The Election Commission already maintains extensive training systems covering polling processes, counting, EVM/VVPAT handling and electoral-roll management.

INTER-AGENCY FRICTION (ECI VS. SECS)

Phase 2 requires the ECI to coordinate with nearly 30 independent State Election Commissions. Synchronising differing voter qualification criteria, booth delimitations and local reservation rotas creates administrative strain.

THE ADMINISTRATIVE CASE IN FAVOUR

For balance, the administrative case for the Bill is real and delegates should not caricature it:

1. **Single mobilisation.** One requisition of staff, one training cycle, one deployment of forces every five years instead of a near-continuous cycle.
2. **Teacher and officer time.** Officials return to their actual jobs for a longer uninterrupted period.
3. **Predictability.** Fixed dates allow the Commission to plan procurement, warehousing and force allocation years ahead rather than reacting to each State's calendar.
4. **Reduced duplication.** One voter awareness campaign, one round of booth-level verification, one set of observer deployments.

Democratic Implications

An election is the only moment at which power is unambiguously returned to the people. Between elections, a government with a majority is constrained by convention, by courts and by the press, but not by the electorate.

THE ACCOUNTABILITY ARGUMENT

- Every election is a hard constraint on a government's behaviour. A government facing an electorate somewhere in the country every few months must keep performing continuously, because the bill for non-performance always falls due soon.
- On this reading, India's staggered calendar is not a defect but a continuous, rolling referendum. A Union government that mishandles something in March faces voters in a State in October. Remove that, and the government gets a five-year holiday from electoral consequence.
- It follows that a reform which reduces the number of occasions on which citizens vote reduces the number of occasions on which power is accountable - whatever its administrative merits.

TESTING THE ARGUMENT

The argument should be tested rather than asserted. The United States House of Representatives faces election every two years - the shortest major national cycle in the democratic world - and is not generally held up as the most responsive legislature. Australia's three-year cycle and the United Kingdom's five-year one produce no obvious accountability gradient.

THE CONSTITUTIONAL PEDIGREE

The accountability argument is not merely rhetorical; it has a strong founding-era pedigree.

- In 1948, moving the Draft Constitution in the Constituent Assembly, Dr. B.R. Ambedkar observed that a democratic executive must satisfy two conditions: it must be stable and it must be accountable.
- He noted that no system ensures both in equal degree, and that the parliamentary system places more emphasis on accountability than on stability.
- He took the view that both the daily assessment of accountability - through questions, debates, resolutions and motions in the legislature - and its periodic assessment through elections were more necessary for India than a stable executive on the American model.

The Bill's case rests substantially on stability. Ambedkar's text is the clearest statement in the constitutional record that, where the two conflict, the Indian Constitution was designed to prefer accountability.

Criminalisation of Politics

This section carries a warning. The link between simultaneous elections and criminalisation is the part of this agenda where delegates are most likely to assert things they cannot prove. The data on criminalisation is excellent. The data on what synchronisation would do to it does not exist. Argue accordingly.

WHAT IS MEANT BY CRIMINALISATION

Criminalisation of politics refers to the increasing participation and election of individuals with criminal cases or serious criminal backgrounds in the political process. It can occur when parties nominate candidates facing criminal cases, when such candidates are elected, or when individuals with established convictions continue to exercise political influence.

An important distinction must be maintained between being accused of an offence and being convicted of one. A pending criminal case does not establish guilt, and the presumption of innocence remains fundamental to the rule of law.

THE DATA

- According to an Association for Democratic Reforms (ADR) analysis, 251 of the 543 elected Lok Sabha MPs in 2024 (46%) had declared criminal cases against themselves, and 170 MPs (31%) had declared serious criminal cases.
- The proportion of elected MPs with declared criminal cases rose from 30% in 2009 to 43% in 2019 and 46% in 2024.
- Criminalisation is closely connected with party candidate selection, electoral competition, campaign finance, local influence, the judicial process and voter behaviour.
- The Supreme Court has recognised that parties have discretion in choosing candidates, but requires them to disclose criminal antecedents and explain their selection. It has specifically held that merely citing a candidate's "winnability" is not sufficient reason for choosing a candidate facing criminal cases.

The persistence of the issue despite disclosure requirements raises an important question: would changing the frequency and structure of elections also change the incentives that contribute to criminalisation?

ONOE AND CRIMINALISATION

ONOE is primarily a reform concerning the timing and synchronisation of elections. It does not, by itself, determine which candidates parties select or create a new automatic disqualification for people merely facing criminal cases.

ARGUMENTS THAT ONOE COULD REDUCE CONDITIONS FOR CRIMINALISATION

- Fewer election cycles could mean fewer occasions for parties and candidates to mobilise money, manpower and political networks.
- If savings were accompanied by stronger campaign finance regulation and greater scrutiny of candidates, some incentives that make resource-rich candidates attractive to parties could weaken.
- A concentrated period in which voters examine candidates for both the Lok Sabha and State Assemblies could encourage scrutiny, if reliable information on candidates' criminal cases is easily accessible.

ARGUMENTS THAT ONOE COULD WORSEN THEM

- A simultaneous election is an exceptionally large, concentrated contest. If parties already value financial resources, local influence and strong networks, concentration could raise the value of candidates with extensive political machinery.
- National issues and national campaigns could become more prominent in State elections, making it harder for voters to focus on local candidates and their individual records.
- The effect would depend on campaign structures, media coverage, voter behaviour and how parties run simultaneous campaigns.

Arguments For and Against

IN FAVOUR

1. **Reduction in election-related costs.** Elections involve large expenditure on polling personnel, security, transport, polling stations, EVMs, VVPATs and materials; parties and candidates also spend heavily on campaigns. The 2019 Lok Sabha election involved more than 61 crore voters and over 10 lakh polling stations (ECI data). Total spending around it is often estimated at about Rs 60,000 crore - an estimate of overall election-related spending, not the official ECI expenditure. If elections are held together, some resources could be shared.
2. **Greater governance efficiency.** Repeated elections mean different parts of the country are frequently under MCC restrictions. Consolidating elections could reduce their overall frequency and duration, giving longer uninterrupted administration. This does not mean the MCC stops governance; the argument is that repeated restrictions and mobilisation could be reduced.
3. **Possible improvement in voter participation.** A common cycle could make the calendar easier to follow and reduce repeated trips to polling stations. Whether turnout would actually rise is not guaranteed; it depends on awareness, accessibility, motivation, local conditions and perceived importance of the election.
4. **Greater policy focus and less "election mode" politics.** Fewer elections could let governments concentrate on long-term programmes in infrastructure, education, healthcare and economic development, rather than measures with immediate political benefit.

AGAINST

1. **Risks to federalism and regional representation.** State elections revolve around agriculture, local infrastructure, education, healthcare, employment and State welfare, while Lok Sabha elections focus on national security, foreign policy and the national economy. If held together, national issues and personalities may overshadow local ones, particularly for regional parties whose campaigns rest on State-specific concerns.
2. **Concerns about democratic accountability.** Under a synchronised cycle a government may go a long period before facing another electoral test. Critics argue this weakens accountability if there are insufficient mechanisms for citizens to respond to poor governance between elections.
3. **Constitutional crisis if a government falls mid-term.** Suppose the Lok Sabha and all Assemblies are elected together in Year 1, and in Year 3 one State government loses its majority through a coalition breakdown. Should a fresh election be held immediately, disrupting synchronisation? Or should the State wait for the next common cycle, with a government lacking a clear majority?

WHAT THIS LEAVES

Stripping out the claims that the evidence does not support on either side, four live issues remain:

1. **The ratification question** - does the proviso to Article 368(2) apply?
2. **The Article 82A(5) deferral power** - the clearest drafting defect, and the most fixable.
3. **The truncated term** - no floor, no precedent, no provision for how such a government operates.
4. **The nationalisation effect** - the only empirically grounded structural objection, and the one no amendment can draft away.

A resolution that addresses these four is doing the committee's actual work. One that confines itself to cost savings and Model Code of Conduct disruption has left the hard questions to somebody else.

Case Study: Sweden & Belgium

Sweden is the comparator the Bill's supporters reach for, and it is the right one - the mechanism in the Constitution (129th Amendment) Bill is close to the Swedish model. It is also the comparator that rewards close reading, because what Sweden actually demonstrates is narrower than what it is usually cited for.

HOW THE SWEDISH SYSTEM WORKS

- **Fixed date, fixed term.** Elections to the Riksdag, Sweden's unicameral parliament, are held every four years on the second Sunday in September. The date is not at the government's discretion.
- **Synchronised by design.** Regional and municipal council elections are held on the same day. Sweden has 21 regions and 290 municipalities; a voter receives three ballot papers at one visit.
- **Proportional representation.** The Riksdag has 349 seats - 310 fixed constituency seats across 29 constituencies plus 39 adjustment seats, so national seat share tracks national vote share closely. A party needs 4% of the national vote to enter, or 12% in a single constituency.
- **Extraordinary elections.** An incumbent government may call one between ordinary elections; it must be held within three months of the decision. The usual trigger is a declaration of no confidence: the Government must then resign or call an extraordinary election, deciding within a week. One is also mandatory if the Speaker fails four times to get a proposed Prime Minister approved.

The rule that matters for this committee: extraordinary elections do not affect the schedule of ordinary general elections. Members elected at an extraordinary election do not begin a new four-year period; they remain in office only until the next ordinary general election. This is precisely the mechanism the Indian Bill proposes for a Lok Sabha or Assembly dissolved mid-term.

GUARD RAILS THE INDIAN BILL LACKS

1. An extraordinary election may not be announced earlier than three months after a newly elected Riksdag first convenes.
2. It cannot be called by a caretaker government - one that has resigned and remains in office for routine business.
3. It cannot be called if an ordinary election is already scheduled within three months.
4. Since 2011, extraordinary elections are also possible in municipalities and regions - so the lower tiers have the same release valve, not merely the obligation to follow the national cycle.

HOW OFTEN THE MECHANISM IS USED

- Since the advent of democracy in Sweden in the early 1920s, an extraordinary election has been held exactly once - on 1 June 1958, to the Second Chamber, on the question of national supplementary pensions.
- Since the Riksdag became unicameral in 1971 there has been no extraordinary election at all.
- In December 2014 the Government announced an extraordinary election after losing a budget vote, then withdrew it following a cross-party agreement. The episode shows how strongly the system pushes parties toward accommodation rather than a fresh poll.

Tip: Whichever side you are on, be the delegate who knows this. Sweden is cited constantly and almost never checked. "The provision you are relying on has been used once since 1958, and never since the Riksdag became unicameral" is a line that ends a speech.

The implication is uncomfortable for both sides. Sweden's truncated-term rule has essentially never been tested, because Swedish governments essentially never fall in a way that triggers it. The provision supporters cite as precedent has no operating record; conversely, opponents cannot point to Swedish experience of chaotic short-term parliaments either, because there has been none.

WHAT TRANSFERS TO INDIA, AND WHAT DOES NOT

Feature	Sweden	India	Does the comparison hold?
Form of state	Unitary. Regions and municipalities are units of local self-government	Federal. States have their own legislative competence under the Seventh Schedule	No. Synchronising a unitary state's tiers raises no federalism question. Synchronising India's does
Electoral system	Proportional representation with a 4% threshold	First-past-the-post	No. Under PR, a national swing costs a regional party seats roughly in proportion to votes lost. Under FPTP, a modest swing can eliminate it entirely
Scale	About 10 million voters; one polling day	97.9 crore electors; 11.80 lakh polling stations; seven phases over 43 days	No. Sweden votes on one Sunday. India cannot
Legislatures synchronised	One national, 21 regional, 290 municipal - none with separate legislative competence	One Lok Sabha and 28 State plus 3 UT Assemblies, each with its own legislative domain	No
Security requirement	Negligible	3,400 CAPF companies	No
Truncated-term rule	Present, and almost never triggered	Proposed, in a system where governments fall regularly	Structurally yes; empirically no
Government stability	Coalition governments routinely serve full terms	1967-71 and the 1990s show repeated mid-term collapse	No. The Swedish rule works because it is rarely needed

THE HONEST LESSON

- Sweden proves that a synchronised electoral calendar with a remainder-of-term rule is constitutionally coherent. It can be drafted; it can be made to work; it is not an exotic or unworkable idea.
- Sweden does not prove that such a system works in a federal state, under first-past-the-post, at Indian scale, or in a political system where governments fall. Sweden differs from India on all four.
- A delegate who cites Sweden must be ready for the question: how often has that provision been used? (Never, since 1971.) A delegate who dismisses Sweden must be ready for the opposite: so where is your evidence that it fails?

A SECOND COMPARATOR: BELGIUM

Belgium is the closer federal analogy and is less often cited.

- Since 2014, the Belgian Constitution provides for federal and regional legislative elections to be held on the same day as the European Parliament election. Where an early election is called, the legislature elected serves the remainder of the five-year period - the same rule as Sweden's and as

the Indian Bill's.

- In 2018 the federal government lost a trust vote roughly six months before the end of its term. Rather than hold an election for a few months' term, the government was permitted to continue in a caretaker capacity until the scheduled poll.

That is a live option for this committee. A caretaker arrangement below some threshold - six months, a year - would avoid the ungovernable rump legislature the Indian Bill currently produces, at the cost of leaving a State or the Union governed by a ministry without a fresh mandate. Delegates should decide which of those two costs they prefer, or propose a third arrangement - and say so either way.

Keywords & Glossary

1. **ONOE** - 'One Nation, One Election'; the proposal to synchronise Lok Sabha and State Assembly elections.
2. **HLC** - High-Level Committee on Simultaneous Elections, chaired by Ram Nath Kovind; report submitted 14 March 2024.
3. **JPC** - Joint Parliamentary Committee examining the 129th Amendment Bill and the Union Territories Laws (Amendment) Bill, 2024.
4. **Appointed date** - The date notified by the President under proposed Article 82A, from which State Assembly terms are tied to the Lok Sabha's.
5. **Simultaneous elections** - Elections to the Lok Sabha and State Legislative Assemblies conducted together, as defined in proposed Article 82A.
6. **Full term / unexpired term / mid-term election** - Concepts introduced by the Bill in Articles 83 and 172; a mid-term election fills only the remainder of the five-year period.
7. **Truncated term** - A shortened legislative term, produced at the transition or after any mid-term dissolution.
8. **Basic structure doctrine** - The principle from *Kesavananda Bharati* (1973) that Parliament cannot alter the Constitution's basic features under Article 368.
9. **Ratification proviso** - The proviso to Article 368(2) requiring approval by at least half the State Legislatures for amendments to specified federal provisions.
10. **Article 356 / President's Rule** - Union assumption of a State's government where constitutional machinery has failed; justiciable after *S.R. Bommai* (1994).
11. **Article 131** - The Supreme Court's original and exclusive jurisdiction over disputes between the Union and States, or between States.
12. **Model Code of Conduct (MCC)** - Election Commission guidelines restricting the conduct of governments, parties and candidates from the announcement of elections.
13. **CAPF** - Central Armed Police Forces, deployed for election security.
14. **EVM / VVPAT** - Electronic Voting Machine / Voter Verifiable Paper Audit Trail.
15. **BU / CU** - Ballot Unit / Control Unit; the two components of an EVM set.
16. **SEC** - State Election Commission; conducts Panchayat and municipal elections under Articles 243K and 243ZA.
17. **Constructive vote of no confidence** - A system where a no-confidence motion must name a replacement government; proposed in the Law Commission's 170th Report (Rule 198A).
18. **Coattail effect** - The tendency of voters to pick the same party at both levels when elections are held together.
19. **Casual vacancy / bye-election** - A seat vacated mid-term and filled by election within six months under Section 151A of the Representation of the People Act, 1951.
20. **Tenth Schedule** - The Anti-Defection Law, enacted in 1985.
21. **FPTP / PR** - First-past-the-post (India) / Proportional representation (Sweden).
22. **Caretaker government** - A government that has resigned or lost confidence but continues routine business until a successor is installed (Belgium, 2018).

Questions a Resolution Must Answer

A resolution that does not address these is incomplete, whichever side it comes from. They are not an agenda for debate; they are the minimum content of a serious document.

THE THRESHOLD QUESTION

1. Does this House support the principle of synchronised elections to the Lok Sabha and State Legislative Assemblies at all? If not, the resolution must say what it proposes instead for the problems the Bill identifies - cost, administrative burden and the Model Code of Conduct. Opposition without an alternative is not a position.
2. If yes, in one phase or two? Both the Standing Committee's 79th Report (2015) and the Law Commission's 2018 draft recommended phased approaches rather than a single nationwide poll. A resolution supporting synchronisation should state which model it adopts and why.

THE CONSTITUTIONAL QUESTIONS

3. Does the amendment require ratification by the Legislatures of not less than one-half of the States under the proviso to Article 368(2)? The resolution must take a position. If it concludes ratification is not legally required, it must say whether it should nonetheless be sought.
4. What happens to Article 356? Does the resolution leave it untouched, amend it, or make its use subject to new conditions where a synchronised cycle is in force? A resolution that restores synchronisation without addressing the provision that destroyed it in 1968 has not finished its work.
5. Should the proposed Article 82A(5) deferral power be constrained - and how? Should it require approval by both Houses, a maximum period of deferral, published criteria for when an election "cannot" be held, and an express provision for who governs the State in the interim?
6. What is the minimum term of a legislature? Is there a floor - six months, one year, two - below which no election is held, and if so what fills the gap: a caretaker government on the Belgian model, President's Rule, or something else?

THE STABILITY QUESTION

7. Should a legislature serving a truncated term have the same powers as a full-term one? Should it be barred from new taxation, major legislation or senior appointments?

THE IMPLEMENTATION QUESTIONS

8. What is the appointed date, and what is the transition schedule? The resolution must name a cycle, identify which Assemblies would have their terms curtailed to reach it, and by how much.
9. Is implementation conditional on verified capacity? Should the appointed date be contingent on the Election Commission certifying that the required ballot units, control units and VVPATs are manufactured, stored and deployable, and that adequate security forces are available? The Commission's own stated minimum is 46,75,100 BUs, 33,63,300 CUs and 36,62,600 VVPATs.
10. How many phases, over how many days? If a synchronised election still runs for six weeks, the resolution must say what it has achieved on the Model Code of Conduct question.
11. Who bears the cost, and over what period? Union consolidated fund, shared with States, or phased procurement?

THE SCOPE QUESTIONS

12. Are local bodies included? If yes, the resolution must acknowledge that this requires a separate amendment reaching Articles 243K and 243ZA, which is widely argued to attract the ratification proviso, and that State Election Commissions, not the ECI, conduct those polls.
13. What happens to bye-elections? If casual vacancies continue to be filled within six months under Section 151A of the Representation of the People Act, 1951, the claim that the country leaves "permanent election mode" needs qualifying. Does the resolution propose to batch bye-elections, leave seats vacant, or leave the position unchanged?
14. Does the resolution carry any accompanying electoral reform? Campaign finance, disqualification on framing of charges for serious offences, a common electoral roll, or nothing?

THE POLITICAL QUESTION

15. How does this resolution reach a two-thirds majority of members present and voting in both Houses? This is not rhetorical. The Bill as introduced commanded a simple majority only. A resolution that cannot identify the parties it expects to bring with it, and what it is offering them, is an expression of preference rather than a legislative proposal.

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A NOTE ON SOURCING STANDARDS FOR THIS COMMITTEE

- **The Executive Board will accept:** the Bill text, parliamentary reports, judgments, Election Commission documents, PIB releases, PRS analysis, ADR data, and reporting from established news organisations.
- **The Executive Board will not accept:** coaching-institute summaries presented as primary sources, social media, unattributed figures, or claims about the High Level Committee's report from delegates who have not read the relevant chapter.
- Where this guide has relied on secondary summaries of primary documents, it has said so. Delegates should do the same.